

M/s Harivansh Gupta Rice Mill v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 14 May 2024 · 2024:AHC:86783-DB · WRIT - C No. - 14553 of 2024 · **Petition disposed of; liberty to challenge bill under Clause 6.5.**

HEADNOTE

A writ challenging an electricity bill is disposed of with liberty to proceed under Clause 6.5 of the U.P. Electricity Supply Code, 2005 where the licensee points to that remedy and the consumer agrees to avail it. The Court does not examine the bill on merits.

FACTUAL SUMMARY

M/s Harivansh Gupta Rice Mill and another filed a writ in the Allahabad High Court challenging an electricity bill dated 8 April 2024. On 2 May 2024 the Division Bench granted the Electricity Department time to obtain instructions and listed the matter as fresh. On 14 May 2024 counsel for the Department submitted that the petitioners had a remedy under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005. Counsel for the petitioners stated they would avail that remedy.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection as alternate remedy

HOLDING

Where a consumer challenges an electricity bill in writ and agrees to avail the statutory objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005, the petition is disposed of with liberty to follow that procedure; the Court does not decide the bill on merits. ¶ 2-4

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

A writ challenging an electricity bill is disposed of with liberty to proceed under Clause 6.5 of the U.P. Electricity Supply Code, 2005 where the licensee points to that remedy and the consumer agrees to avail it. The Court does not examine the bill on merits. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL DATED 08.04.2024

Disposed of without examining the bill after the petitioners agreed to proceed under Clause 6.5. ¶ 3-4